The proposed regulations prompted very little comment from the public. The objections that were raised questioned the need for the regulations rather than pointing out defects or undesirable characteristics of the proposal. The need for the regulation to assist in providing the necessary management, and conservation of the public lands involved has been established. Accordingly the amendments are adopted without change. The amendments shall become effective at the beginning of the 30th calendar day following date of publication in the FEDERAL REGISTER.

STEWART L. UDALL,
Secretary of the Interior.

MAY 4, 1962.

1. The caption of § 160.14 is amended and a new paragraph (e) is provided as follows:

§ 160.14 Rentals; schedule of grazing fees; billing notices; effects of failure to pay; crossing permits.

* * * * *

(e) *Crossing permits.* Upon application filed with the authorized officer by any person showing the necessity for crossing the Federal land with livestock for proper and lawful purposes, a crossing permit may be issued to him at a charge, payable in advance, of one cent per head per day for cattle, two cents per head per day for horses, and one-fifth cent per head per day for sheep and goats. A minimum charge of $10 will be made for each crossing permit, except that no fee will be charged where the trail to be used is so limited and defined that no substantial amount of forage will be consumed in transit.

2. Sections 160.22 and 160.23 are renumbered § 160.23 and § 160.24, respectively, and a new § 160.22 is added as follows:

§ 160.22 Trespass.

(a) Grazing livestock upon, allowing livestock to drift and graze on, or driving livestock across lands that are subject to lease or permit under the provisions of this Part or within a stock driveway, without a lease or other authorization from the Bureau of Land Management, is prohibited and constitutes trespass. Trespassers will be liable in damages to the United States for the forage consumed and for injury to Federal property, and may be subject to civil and criminal prosecution for such unlawful acts.

(b) A lessee who grazes livestock in violation of the terms and conditions of his lease by exceeding numbers specified, or by allowing the livestock to be on Federal land in an area or at a time different from that designated shall be in default and shall be subject to the provisions of § 160.19. In addition he may be subject to trespass action in accordance with the practices and procedures indicated in § 161.12 (a), (c) (1), (2), (3), (4), (d), and (g) of this chapter, modified so far as practicable and necessary to include Federal land outside of established grazing districts.

(c) When the alleged trespasser is not a lessee of lands under the regulations of this Part, the signing officer may take action against the trespasser in accordance with the practices and procedures in § 161.12 (a), (c) (1), (2), (3), (4), (d), and (g) of this chapter modified so far as practicable and necessary to include lands subject to lease under the provisions of this Part or within a stock driveway.

[F.R. Doc. 62-4574; Filed, May 10, 1962; 8:46 a.m.]

APPENDIX—PUBLIC LAND ORDERS

[Public Land Order 2669]

[Nevada 051863, 057049]

NEVADA

Partly Revoking the Executive Order of April 17, 1926; Public Water Reserve No. 107

By virtue of authority vested in the President by section 1 of the Act of June 25, 1910 (38 Stat. 847; 43 U.S.C. 141), and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

1. The Executive order of April 17, 1926, creating Public Water Reserve No. 107, is hereby revoked so far as it affects the following-described lands:

MOUNT DIABLO MERIDIAN

T. 17 N., R. 20 E.,
Sec. 35, SE¼SW¼.
T. 26 N., R. 53 E.,
Sec. 4, SW¼SW¼;
Sec. 29, SW¼NE¼ and W½SE¼.

Containing 200 acres.

2. Beginning at 10:00 a.m. on June 9, 1962, the lands shall be open to operation of the public land laws generally, subject to existing valid rights and equitable claims, and the requirements of applicable law, rules, and regulations.

3. The lands have been open to applications and offers under the mineral leasing laws and to location for metalliferous minerals. They will be open to location for nonmetalliferous minerals beginning at 10:00 a.m. on June 9, 1962.

Inquiries concerning the lands should be addressed to the Manager, Land Office, Bureau of Land Management, Reno, Nevada.

JOHN A. CARVER, Jr.,
Assistant Secretary of the Interior.

MAY 4, 1962.

[F.R. Doc. 62-4623; Filed, May 10, 1962; 8:50 a.m.]

[Public Land Order 2670]

ALASKA

Withdrawing Lands for Use of the Alaska Railroad; Revoking Certain Executive and Public Land Orders; Correcting Public Land Order No. 2455 of August 9, 1961

By virtue of the authority vested in the President by section 1 of the Act of March 12, 1914 (38 Stat. 305; 48 U.S.C. 304), and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

1. Subject to valid existing rights, the following-described public lands are hereby withdrawn from all forms of appropriation under the public land laws, including the mining laws, and reserved for use of the Alaska Railroad, Department of the Interior, for railroad purposes:

[Anchorage 050042]

SEWARD WATERFRONT AREA

Beginning at a point 100 feet east of Meander Corner No. 2 of U.S. Survey 726 South, thence: North 2,772 feet to a point 100 feet east of Corner No. 1, U.S. Survey 726 North; East 41.77 feet to Meander Corner No. 1 of U.S. Survey 1116; Southerly along meander line to a point due east of Meander Corner No. 2, U.S. Survey 726 South; West to the point of beginning.

(Excepting therefrom all of U.S. Survey 606 and U.S. Survey 605, in part.)

Containing approximately 11.23 acres.

[Anchorage 053569]

2. The Executive Order of July 3, 1905, which reserved lands for use of the Signal Corps for a cable house and signal corps station, and Executive Order No. 3149 of August 16, 1919, which reserved lands for use of the Navy Department for erection of wharves, coal storage yards, and other naval purposes, as partly revoked by Executive Order No. 3828 of May 3, 1923, and as amended by Public Land Order No. 718 of May 4, 1951, are hereby revoked so far as they affect any of the lands described in Paragraph 1 of this order.

[Fairbanks 027546]

3. The reference to U.S. Survey 2670, in Public Land Order No. 2455 of August 9, 1961 (26 F.R. 7548), is hereby corrected to read "2760A" wherever it appears in the description for Tract 1, Fort Yukon Area.

JOHN A. CARVER, Jr.,
Assistant Secretary of the Interior.

MAY 4, 1962.

[F.R. Doc. 62-4575; Filed, May 10, 1962; 8:46 a.m.]

[Public Land Order 2671]

[Wyoming 099514, 0142185, 0142186]

WYOMING

Partly Revoking Reclamation and Air Navigation Site Withdrawals

By virtue of the authority contained in section 3 of the act of June 17, 1902 (32 Stat. 388; 43 U.S.C. 416), and in section 4 of the act of May 24, 1928 (45 Stat. 729; 49 U.S.C. 214), it is ordered as follows:

1. The order of the Bureau of Reclamation of April 13, 1955, concurred in by the Bureau of Land Management on October 20, 1955, which withdrew lands for reclamation purposes in connection with the Missouri River Basin Project, and the departmental orders of December 27, 1937; June 21, 1940; July 16, 1942, and Public Land Order No. 235 of June 9, 1944, creating Air Navigation Site Withdrawals No. 116, No. 141, No. 185, and No. 215, respectively, are hereby revoked so far as they affect the following described lands: